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CASE #	CASE NAME	HEARING NAME
CVME2503987	ROBINSON VS CALIFORNIA STATE TEACHER'S RETIREMENT SYSTEM (CALSTRS)	MOTION TO DISMISS PETITION FOR WRIT OF MANDATE

Tentative Ruling: Granted. Notice of Non-Opposition filed 07/27/26.

2.

CASE #	CASE NAME	HEARING NAME
CVME2510810	GERARDI VS MILO	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: DEMURRER OVERRULED.

MOTION TO STRIKE GRANTED WITH 20 DAYS LEAVE TO AMEND.

This is personal injury case. On November 20, 2023, Plaintiff Michael Gerardi ("Plaintiff") sustained serious injuries when a vehicle driven to Defendant Serenity Ceralde Milo ("Milo" or "Driver") collided with Plaintiff's vehicle. Plaintiff alleges that, prior to the collision, Milo, who was a minor, and Defendant Jario Perez ("Perez") consumed alcohol, which was provided to them by Defendants BJ'S Restaurant, Inc. and Genevieve Kristine Aleman ("Defendants"). Plaintiff alleges that Defendant driver drove the vehicle at a high rate of speed until she lost control of the car, which crossed into oncoming traffic and collided head-on with Plaintiff's vehicle. The car driven by Milo was owned by Defendant Kim Kyeong ("Kyeong").

On September 17, 2025, Plaintiff filed his Complaint against Milo, Perez and Kyeong and Milo's father, David Milo. On November 20, 2025, Plaintiff filed Doe Amendments naming BJ's Restaurants, Inc., BJ's Restaurant Operations Company and Aleman. On March 27, 2026, Plaintiff filed the operative First Amended Complaint ("FAC"). He asserts five causes of action for: (1) Negligence/Gross Negligence; (2) Negligence Per Se (Violation of Vehicle Code § 23109); (3) Negligence Per Se (Violation of Vehicle Code § 21701); (4) Negligent Entrustment; and (5) Violation of Business and Professions Code Section 25602.1.

Defendants now demur to the first and fifth causes of action against them. Defendants argue that the Negligence/Gross Negligence cause of action is improper because of Bus. & Prof. Code § 25602 provides the only basis for a claim based on the furnishing of alcohol. Defendants argue that the fifth cause of action is time-barred because it was not asserted in the initial Complaint and is not based on the same general set of facts or the same injury as the claims asserted in the Complaint.

Plaintiff argues that his negligence cause of action is based on a general duty of care not to serve alcohol to intoxicated minors rather than section 25602. Plaintiff argues that he has sufficiently pled negligence and gross negligence. Plaintiff argues that the fifth cause of action relates back to the original Complaint because it is based on the same set of facts.

Defendants also move to strike the claim for punitive damages. Defendants argue that there are no specific facts showing fraud, malice or oppression. Defendants argue that there are no facts showing that an officer, director or managing agent of BJ's authorized or ratified the conduct.

Plaintiff argues that there are sufficient facts showing malice because Defendants knew that Milo was a minor and was intoxicated and knew that she would drive after consuming the alcohol.

Plaintiff requests judicial notice of a decision by the Alcoholic Beverages Control Appeals Board regarding the subject incident. However, this document is not relevant. Judicial notice is denied.

The elements of a cause of action for negligence are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.) "Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent. There is no requirement that [the plaintiff] identify and allege the precise moment of the injury, or the exact nature of the wrongful act." (*Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747-748.)

Gross negligence is defined as either a want of even scant care or an extreme departure from the ordinary standard of conduct, while ordinary negligence consists of a failure to exercise the degree of care in each situation that a reasonable person would employ in similar circumstances. (*City of Santa Barbara v. Superior Court* (2007) 41 Cal. 4th 747, 754.)¹ To plead gross negligence, the plaintiff must plead the traditional elements of negligence: duty, breach, causation and damages, as well as extreme conduct on the part of the defendant. (*Rosencrans v. Dover Images, Ltd.* (2011) 192 Cal.App.4th 1072, 1082.)

Defendants argue that the first cause of action fails because liability for the furnishing of alcohol is limited to the exception of immunity under Bus. & Prof. Code § 25602.1. Bus. & Prof. Code §25602(b) provides that: "No person who sells, furnishes, gives, or causes to be sold, furnished, or given away, any alcoholic beverage pursuant to subdivision (a) of this section shall be civilly liable to any injured person or the estate of such person for injuries inflicted on that person as a result of intoxication by the consumer of such alcoholic beverage." Section 25602 bars liability against anyone who permits the consumption of alcohol on their premises. (*Leong v. San Francisco Parking* (1991) 235 Cal. App. 3d 827, 833-834.) The statute provides a "sweeping immunity" for sellers of alcohol and supersedes common law negligence principles emerging prior to the statute which permitted liability in some circumstances. (*Ennabe v. Manosa* (2014) 58 Cal. 4th 697, 707; *Hepe v. Paknad* (1988) 199 Cal. App. 3d 412, 416.)

There is one exception to the section 25602 immunity. Bus. & Prof. Code § 25602.1 provides a limited exception where a cause of action may be brought by a person who has suffered injury or death, against a person who sells, furnishes, gives or causes to be

¹ California does not recognize a distinct cause of action for gross negligence apart from negligence. (*Jimenez v. 24 Hour Fitness USA* (2105) 237 Cal. App. 4th 546, 552 FN 3.) Here, it is pled in connection with the negligence cause of action rather than separately.

sold, furnished or given away any alcoholic beverage to “any obviously intoxicated minor where the furnishing, sale or giving of that beverage to the minor is the proximate cause of the personal injury or death sustained by that person.” “[T]he Legislature abolished tort liability against the furnisher of alcoholic beverages except in only one situation, namely, providing alcohol to an obviously intoxicated minor. No other exceptions to this immunity exist.” (*Hepe, supra*, 199 Cal. App. 3d at 418; citing *Strang v. Cabrol* (1984) 37 Cal.3d 720, 728.) It is a narrow exception and must be strictly construed. (*Hernandez v. Modest Portuguese Pentecost Association* (1995) 40 Cal.App.4th 1274, 1282.)

Plaintiff asserts that Defendants negligently provided alcohol to Milo, who was a minor and was obviously intoxicated. (FAC, ¶¶ 39-40.) Assuming this allegation is true, Defendants’ conduct falls within the exception of alcohol seller immunity. Defendants argue that a negligence cause of action cannot be based on a violation of section 25602.1, which creates a limited statutory cause of action. Defendants rely on *Pepe v. Paknad, supra*, 199 Cal. App. 3d 412. In *Pepe*, the Court held that the plaintiff could not state a cause of action for negligence, assault, battery or products liability because the claims were barred by section 25602. (Id at 421.) However, in that case, the driver who consumed the alcohol furnished by the defendant was not a minor. On the other hand, in *Ennabe v. Manosa, supra*, the Court determined that there were triable issues as to the plaintiffs’ claims for general negligence, premises liability, and liability under section 25602.1 where the defendant sold alcohol to an allegedly obviously intoxicated minor. (Id at 722.) Because the present case involves allegations that Defendants provided alcohol to an obviously intoxicated minor, the claims are not barred under section 25602. To this end, the demurrer is overruled.

Defendants contend that the fifth cause of action is time-barred. A demurrer based on a statute of limitations defense lies only where it appears clearly and affirmatively on the face of the complaint that the claim is barred. (*Committee for Green Foothills v. Santa Barbara Bd. of Supervisors* (2010) 48 Cal. 4th 32, 442.) “While a demurrer based on statute of limitations lies where the dates in question are shown on the face of the complaint, if those dates are missing, there is no ground for a general demurrer. (*United Western Medical Centers v. Superior Court* (1996) 42 Cal. App. 4th 500, 505.)

Pursuant to CCP § 335.1, the statute of limitations for personal injury claims is two years. The incident occurred on November 20, 2023. (FAC, ¶ 1.) Thus, the limitations period for personal injury claims expired on November 20, 2025. The Complaint was filed on September 17, 2025 and asserted four causes of action for: (1) Negligence/Gross Negligence; (2) Negligence Per Se (Violation of Vehicle Code § 23109); (3) Negligence Per Se (Violation of Vehicle Code § 21701); and (4) Failure to Supervise and Control against Defendants Milo, Perez, Kyeong and David Milo. The Doe Amendments naming Defendants were filed on November 20, 2025, just within the statutory period. Defendant argues that the fifth cause of action is time-barred because it was first asserted pursuant to the FAC filed on March 27, 2026.

Plaintiff contends that the fifth cause of action is timely because the claim relates back to the claims asserted in the Complaint. “The relation-back doctrine requires that the amended complaint must (1) rest on the *same general set of facts*, (2) involve the *same injury*, and (3) refer to the *same instrumentality*, as the original one.” (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 408-09 [emphasis in the original.]) The “relation back doctrine”

focuses on factual similarity as opposed to the rights or obligations arising from the facts. (*Dudley v Department of Transp.* (2001) 90 Cal.App.4th 255, 265.) Thus, the relation-back doctrine requires the court to compare the factual allegations in the original and amended complaints. (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal. App. 4th 409, 416.) If the operative facts are the same in both pleadings, a change in legal theory or cause of action is permissible. (*Goldman v. Wilsey Foods, Inc.* (1989) 216 Cal.App.3d 1085, 1094-1095.)

Here, it is undisputed that the Complaint contained no cause of action for violations of Bus. & Prof. Code § 25602.1. However, like the FAC, the Complaint is based on the same November 20, 2023, collision. (Comp. ¶ 1; FAC, ¶ 1.) The Complaint includes allegations that the Driver did not have a driver's license and was operating the vehicle owned by Kyeong at a high rate of speed when she lost control of the vehicle, crossed the centerline and struck Plaintiff's vehicle head on. (Comp. ¶¶ 26-29.) Plaintiff alleged that Milo was intoxicated at the time of the Incident. (*Id* at ¶ 30.) The Complaint alleged that Does 51-100 were licensed to sell alcoholic beverages, and sold furnished, gave or caused to be sold furnished or given away alcoholic beverages to minor Milo while she was obviously intoxicated. (*Id* at ¶ 31.) Although not asserted as a separate cause of action, the Complaint referenced Bus. & Prof. § 25602.1 about the liability of Does 51-100.

The allegations asserted against Defendants in the FAC are based on the same facts. Plaintiff alleges that on November 20, 2023, Defendants sold, furnished gave or caused them to be sold, furnished or given away, alcoholic beverages to Defendant Milo, who was not of legal drinking age. (FAC, ¶ 97.) While intoxicated, Milo harmed Plaintiff. (*Id* at ¶ 104.) Because these allegations are based on the same general facts and same injuries, the claims relate back to the original timely-filed Complaint. The fifth cause of action is not time-barred. Since the statute of limitations was the only grounds for the demurrer, the demurrer, this ground, is overruled.

Pursuant to CCP §436(a), the court may “strike out any irrelevant, false, or improper matter inserted in any pleading.” It is used to reach pleading defects that are not subject to demurrer. (*CLD Construction v. City of Ramon* (2004) 120 Cal. App. 4th 1141, 1146.) When ruling on a motion to strike, the allegations of the pleading are assumed to be true and read in their context. (*Clauson v. Superior Court* (1998) 67 Cal. App. 4th 1253, 1255.) The grounds for the motion must appear on the face of the pleading or from any matter of which the court is required to take judicial notice. (CCP §437.)

A motion to strike is the proper procedure to attack a claim for punitive damages. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code §3294(a).) As defined in the statute, malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1).) Despicable conduct is conduct which is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal. App. 4th 1017, 1050.) Malice does not require actual intent to harm. Instead, the plaintiff may show